



BEFORE THE IOWA BOARD OF
SOCIAL WORK EXAMINERS

IN THE MATTER OF:

BARRION STAPLES

Respondent.

CASE NUMBERS: 93-5, 93-8

SETTLEMENT AGREEMENT

COMES NOW the Iowa Board of Social Work Examiners ("Board") and Barrion Staples ("Respondent"), and, pursuant to Iowa Code section 17A.10 and 272C.3(4) (1993), and 645 Iowa Administrative Code section 280.203(2), enter into the following Settlement Agreement of the contested case currently on file:

1. Respondent was officially licensed as a social worker in the state of Iowa on July 17, 1990, and holds license number 663. Respondent's license to practice social work in Iowa is current until December 31, 1994.

2. The Board has jurisdiction of the parties and the subject matter.

3. Respondent shall enter into a written fee agreement with each patient/client. This agreement shall be approved by the Board prior to its use by Respondent. Respondent shall submit said written fee agreement to the Board for its approval within thirty (30) days from the date this agreement is executed by the Board.

4. Respondent shall develop a practice of billing which is in conformity with 645 Iowa Administrative Code chapter 280. This practice of billing shall be reduced to writing and shall be submitted to the Board for its approval within thirty (30) days from the date this agreement is executed by the Board.

5. Respondent shall complete patient/client notes for each patient/client which clearly state, in legible form, the patient/client's name, date of session, specific time of session, and areas of discussion.

6. Respondent shall complete an initial assessment for each patient/client which shall clearly state, in legible form, an initial diagnosis, goals of treatment, expected length of treatment, and any further information necessary for treatment.

7. Respondent shall be supervised by a licensed social worker of his choice, subject to approval by the Board. Respondent shall submit the name,

address, and phone number of said Supervisor to the Board for its approval within thirty (30) days from the date this agreement is executed by the Board.

8. The Supervisor shall have access to all Board records, including investigative reports, in this matter.

9. The Supervisor shall review Respondent's written fee agreements, billing statements, reimbursement forms sent to insurance companies, and patient notes on a quarterly basis for the first twelve (12) months from the date this agreement is executed by the Board. The Supervisor shall then review the above documents twelve (12) months after the final quarterly review. The Supervisor shall make a written report to the Board within thirty (30) days after the date of each review.

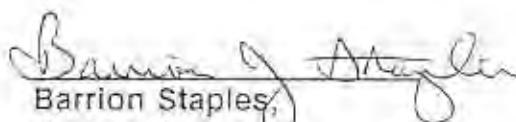
10. Should Respondent violate the terms of this Settlement Agreement in any respect, the Board may institute formal disciplinary proceedings. This agreement shall be made part of the permanent record of the Iowa Board of Social Work Examiners and may be considered by the Board in determining the nature and severity of any future disciplinary action.

11. This Settlement Agreement is subject to the approval of the Board. If the Board fails to approve this Settlement Agreement, it shall be of no force or effect to either party.

12. This Settlement Agreement is voluntarily submitted by the Respondent to the Board for its consideration.

13. This Settlement Agreement is public record available for inspection and copying in accordance with chapter 22 of the Iowa Code.

Dec 13, 1994
DATE


Barrion Staples,
Respondent.

This Settlement Agreement is accepted by the Iowa Board of Social Work Examiners on this 10th day of January, 1995.


Bruce Buchanan
Iowa Board of Social Work
Examiners, Chairperson

BEFORE THE IOWA BOARD OF
SOCIAL WORK EXAMINERS

IN THE MATTER OF:	)	CASE NUMBERS: 93-5, 93-8
	)	
BARRION STAPLES	)	STATEMENT OF CHARGES
	)	
Respondent.	)	

TO THE ABOVE NAMED RESPONDENT:

The Iowa Board of Social Work Examiners has jurisdiction of this matter pursuant to Iowa Code chapters 17A, 154C, and 272C (1993).

Licenses issued by the Board are subject to the laws of the state of Iowa and to the administrative rules of the Board.

Respondent Barrion Staples was at all times during the following events a licensed social worker. Respondent was originally licensed to practice as a social worker in the state of Iowa on July 17, 1990, and holds license number 663. Respondent's license to practice social work in Iowa is current until December 31, 1994.

Respondent's current address as reported to the Board is 5714 S.W. 48th Avenue, Des Moines, Iowa 50321.

COUNT I

Respondent is charged with knowingly making misleading, deceptive, untrue or fraudulent representations in the practice of social work in violation of Iowa Code § 272C.10(3) and 645 Iowa Administrative Code 280.212(3), when he submitted insurance claims to two insurance companies for services which were never rendered.

COUNT II

Respondent is charged with unethical business practices in the falsification of client records in violation of Iowa Code § 272C.10(3) (1993) and 645 Iowa Administrative Code 280.212(15)(c), when he submitted insurance claims to two insurance companies for services which were never rendered.

COUNT III

Respondent is charged with failing to maintain a record for each client/patient which accurately reflects the client/patient contact with the service provider in violation of 645 Iowa Administrative Code 280.213(5)(e), when he submitted insurance claims to two insurance companies for services which were never rendered.

COUNT IV

Respondent is charged with failing to advise each client/patient with a description of what the client/patient may expect in the way of consultations, fees, and billings in violation of 645 Iowa Administrative Code 280.213(1)(m), when he failed to inform three patients of his fees and billing practices, including failure to advise said patients that they would be fully charged for sessions for which they failed to show and for telephone conversations with the Respondent.

CIRCUMSTANCES

1. On October 10, 1994, the Board reviewed an investigative report from special investigator Rudy Vasquez dated December 30, 1993, which indicated the following:

(a) On July 16, 1993, the Board received a complaint which alleged that Respondent submitted an insurance claim for services which were never rendered.

(b) Respondent submitted two insurance claims to Central States Southeast & Southwest Areas, Health and Welfare Fund for services he allegedly performed for "M.R." The first claim indicates that Respondent treated "M.R." from November 5, 1992 to February 25, 1993 at \$125 per session. The second claim indicates that Respondent treated "M.R." from February 28, 1993 to April 30, 1993, also at \$125 per session. Central States Southeast & Southwest Areas, Health and Welfare Fund remitted \$3,500 to Respondent for these services.

(c) "M.R." stated to Investigator Vasquez that the last date that Respondent performed counseling services for her was February 28, 1993. "M.R." did not receive counseling services from Respondent in either March or April of 1993. From December of 1992 to February 28, 1993, "M.R." paid \$60 per session for a total of approximately \$1,380.

(d) "M.R." stated to Investigator Vasquez that Respondent failed to

discuss his fees and billing practices with her. She further stated that she was at no time advised that she would be fully charged for sessions for which she did not show and for telephone conversations.

2. On October 10, 1994, the Board reviewed a second investigative report from special investigator Rudy Vasquez dated December 30, 1993, which indicated the following:

(a) On November 29, 1993, the Board received a second complaint which alleged that Respondent submitted an insurance claim for services which were never rendered.

(b) Respondent submitted one insurance claim to Principal Mutual Life Insurance Company for services he allegedly performed for "S.W." and "K.W." Respondent submitted twenty three sessions to Principal Mutual Life Insurance Company at \$125 per session for sessions allegedly held from June 1993 to August 1993. Principal Mutual Life Insurance Company remitted \$1567.07 to Respondent for these services.

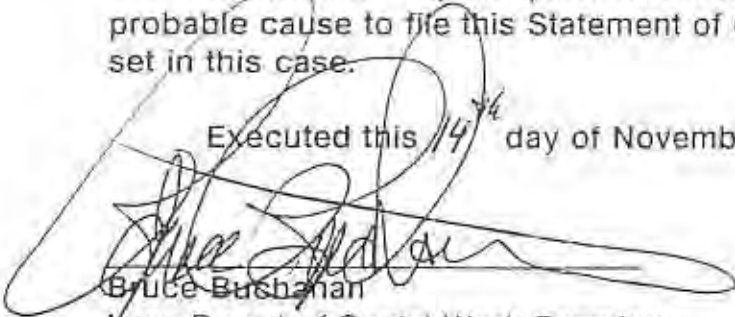
(c) "S.W." stated to Investigator Vasquez that Respondent performed a total of thirteen sessions for he and his wife from June 8, 1993 to August 2, 1993. They paid \$60 per session for a total of \$780.

(d) "S.W." stated to Investigator Vasquez that Respondent failed to discuss his fees and billing practices with he and his wife. He further stated that he was at no time advised that he would be fully charged for sessions for which he did not show and for telephone conversations.

FINDING OF PROBABLE CAUSE

On October 10, 1994, the Iowa Board of Social Work Examiners found probable cause to file this Statement of Charges and to order that a hearing be set in this case.

Executed this 14th day of November, 1994.


Bruce Buchanan
Iowa Board of Social Work Examiners
Board Chairperson

BEFORE THE IOWA BOARD OF
SOCIAL WORK EXAMINERS

IN THE MATTER OF:	)	CASE NUMBERS: 93-5, 93-8
	)	
BARRION STAPLES	)	NOTICE OF HEARING
	)	
Respondent.	)	

TO THE ABOVE NAMED RESPONDENT:

Pursuant to Iowa Code section 17A.12 (1993) and 645 Iowa Administrative Code section 280.205, and upon probable cause determination by the Iowa Board of Social Work Examiners (the Board), you are hereby notified that the attached Statement of Charges has been filed and that a disciplinary hearing regarding these charges has been scheduled on January 10, 1995, at 10:30 a.m. in the 5th floor conference room, side 2, in the Lucas State Office Building, Des Moines, Iowa.

The authority for the hearing is Iowa Code sections 17A.12, 272C.3 and 272C.6 (1993) and 645 Iowa Administrative Code section 280.207.

You may appear personally at the hearing. You have the right to be represented by legal counsel at your own expense. You have the right to present evidence on your behalf, examine and cross-examine witnesses, and submit documentary evidence in support of your position to the Board.

If you fail to appear and defend against these charges, Iowa Code section 17A.12(3) (1993) provides that the hearing may proceed and a decision, including disciplinary action, may be rendered in your absence.

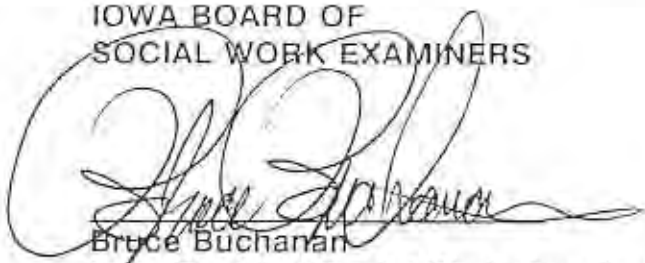
You are hereby notified that the hearing will be presided over by the Board which will be assisted by an administrative law judge from the Iowa Department of Inspection and Appeals. Further, you are also hereby notified that the office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all filings with the Board should be served on counsel at the following address: Heather Adams, Assistant Attorney General, Hoover State Office Building, Des Moines, Iowa, 50319; telephone number (515) 281-6858.

The hearing will concern whether disciplinary action should be taken

against your license to practice as a social worker based on the allegations in the attached Statement of Charges.

Dated this 14th day of November, 1994.

IOWA BOARD OF
SOCIAL WORK EXAMINERS

A large, stylized handwritten signature in black ink, appearing to read "Bruce Buchanan", is written over the printed name.

Bruce Buchanan
Iowa Board of Social Work Examiners
Board Chairperson

96

BEFORE THE IOWA BOARD OF
SOCIAL WORK EXAMINERS

IN THE MATTER OF:

BARRION STAPLES

Respondent.

CASE NUMBERS: 93-5, 93-8

MODIFICATION OF PRIOR
SETTLEMENT AGREEMENT

COMES NOW the Iowa Board of Social Work Examiners ("Board") and Barrion Staples ("Respondent"), and, pursuant to Iowa Code section 17A.10 and 272C.3(4) (1993), and 645 Iowa Administrative Code section 280.203(2), hereby enter into the following Settlement Agreement. This Agreement supersedes the Settlement Agreement signed by Respondent on December 13, 1994, and accepted by the Board on January 10, 1995:

1. Respondent was officially licensed as a social worker in the state of Iowa on July 17, 1990, and holds license number 663. Respondent's license to practice social work in Iowa is current until December 31, 1996.
2. The Board has jurisdiction of the parties and the subject matter.
3. Respondent shall inform the Board as to each and every location at which he provides clinical social work services. This information shall be filed to the Board office within fifteen (15) days of the commencement of services. If Respondent provides social work services for an agency, corporation, or other organization, Respondent shall provide the following information to the Board: the name and address of the agency, corporation, or organization for whom Respondent is employed; the name of the supervisor responsible for reviewing Respondent's performance; and a description of the services to be provided by Respondent. If Respondent practices as an individual provider of clinical social work services, or if Respondent practices in association with other individual practitioners, Respondent shall provide the following information to the Board: the address at which Respondent is practicing and the name of any individuals associated with Respondent's practice.
4. Respondent shall complete patient/client notes for each patient/client which clearly state, in legible form, the patient/client's name, date of session, specific time of session, and areas of discussion.

5. Respondent shall complete an initial assessment for each patient/client which shall clearly state, in legible form, an initial diagnosis, goals of treatment, expected length of treatment, and any further information necessary for treatment.

6. If Respondent practices as an individual provider of clinical social work services, or if Respondent practices in association with other individual practitioners, Respondent shall enter into a written fee agreement with each patient/client. This agreement shall be approved by the Board prior to its use by Respondent. Respondent shall submit said written fee agreement to the Board for its approval within thirty (30) days from the date Respondent commences said practice.

7. If Respondent practices as an individual provider of clinical social work services, or if Respondent practices in association with other individual practitioners, Respondent shall develop a practice of billing which is in conformity with 645 Iowa Administrative Code chapter 280. This practice of billing shall be reduced to writing and shall be submitted to the Board for its approval within thirty (30) days from the date Respondent commences said practice.

8. If Respondent practices as an individual provider of clinical social work services, or in association with other individual practitioners, Respondent shall be supervised by a licensed social worker of his choice, subject to approval by the Board. Respondent shall submit the name, address, and phone number of said Supervisor to the Board for its approval within thirty (30) days from the date Respondent commences said practice. The Supervisor shall have access to all Board records, including investigative reports, in this matter. The Supervisor shall review Respondent's written fee agreements, billing statements, reimbursement forms sent to insurance companies, and patient notes on a quarterly basis for the first twelve (12) months from the date the Board approves said supervisor. The Supervisor shall then review the above documents twelve (12) months after the final quarterly review. The Supervisor shall make a written report to the Board within thirty (30) days after the date of each review.

9. Should Respondent violate the terms of this Settlement Agreement in any respect, the Board may institute formal disciplinary proceedings. This agreement shall be made part of the permanent record of the Iowa Board of Social Work Examiners and may be considered by the Board in determining the nature and severity of any future disciplinary action.

10. This Settlement Agreement is subject to the approval of the Board. If the Board fails to approve this Settlement Agreement, it shall be of no force or effect to either party.

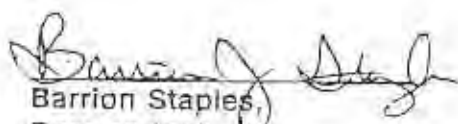
11. This Settlement Agreement is voluntarily submitted by the

Respondent to the Board for its consideration.

12. This Settlement Agreement is public record available for inspection and copying in accordance with chapter 22 of the Iowa Code.

13. This Agreement shall be effective for three years from the date of its acceptance by the Board.

Feb 13, 1996
DATE


Barrion Staples,
Respondent

4/30/96
DATE

Bruce Buchanan,
Iowa Board of Social Work
Examiners, Chairperson

APPROVED AS TO FORM AND CONTENT:

Feb 13, 1996
DATE


Louis Herrera,
Attorney for Respondent

DATE

Heather L. Adams,
Assistant Attorney General

BEFORE THE IOWA BOARD OF
SOCIAL WORK EXAMINERS

IN THE MATTER OF:	)	CASE NUMBER: 96-06
	)	
BARRION STAPLES	)	INFORMAL SETTLEMENT
	)	
Respondent.	)	

COMES NOW the Board of Social Work Examiners of the State of Iowa ("Board") and Barrion Staples ("Respondent"), and pursuant to Iowa Code sections 17A.10 and 272C.3(4), enter into the following Informal Settlement of the contested case currently on file against the Respondent:

1. The Respondent was originally licensed to practice as a social worker in the state of Iowa on July 17, 1990, and holds license number 00663.
2. A Statement of Charges was filed against the Respondent on June 11, 1997. The Statement of Charges awaits hearing.
3. The Board has jurisdiction over the parties and the subject matter of the Statement of Charges.
4. Upon the Board's approval of this Informal Settlement, the Respondent's license shall be suspended indefinitely until further order of the Board, with no possibility of reinstatement for a period of three (3) years from the date of this agreement. During the entire period of suspension, the Respondent shall not hold himself out to be licensed social worker and shall not engage in any of the practices or aspects of the practice of social work in the State of Iowa for which a license is required.

5. The Respondent hereby agrees that he shall meet the following conditions prior to applying for reinstatement of his license:

a. The Respondent shall undergo a full psychiatric evaluation at a facility approved in advance by the Board. Prior to the evaluation, the facility shall be provided with the Statement of Charges, the Informal Settlement, and the investigative file in this contested case.

b. The Respondent shall provide, from the Board approved facility, an initial treatment plan. This initial treatment plan shall be subject to approval of the Board. The Respondent shall undergo treatment pursuant to such approved plan.

c. The Respondent shall sign a release which (a) will enable the Board to freely communicate with all individuals involved in Respondent's evaluation and treatment, (b) provide for full access by the Board to all records maintained with respect to such evaluation and treatment, and (c) provide for monthly reports on Respondent's progress to be submitted directly to the Board. It is the Respondent's responsibility to ensure that such monthly progress reports are provided to the Board.

d. Any proceeding for reinstatement shall be initiated by the Respondent, who may file with the Board an application for reinstatement. The application shall state facts which, if established, shall be sufficient to prove that Respondent has complied with the terms of this Informal Settlement, that the basis for the suspension no longer exists, and that it would be in the public interest for the license to be reinstated. The burden of proof to establish such facts shall be on the Respondent.

6. This agreement shall be part of the permanent record of Respondent and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

7. This Informal Settlement as well as the Statement of Charges are public records available for inspection and copying in accordance with the requirements of Iowa Code Chapter 22.

8. This Informal Settlement is voluntarily submitted by the Respondent to the Board for its consideration. By entering into this agreement, the Respondent voluntarily waives any rights to a contested case hearing on the allegations contained in the Statement of Charges, and waives any objections to the terms of this Informal Settlement.

9. This Informal Settlement constitutes resolution of a contested case proceeding and is subject to approval by the Board. If the Board does not approve this Informal Settlement it shall be of no force or effect to either party.

10. The Board's approval of this Informal Settlement shall constitute a Final Order of the Board.

11. In the event the Respondent violates or fails to comply with any of the terms or provisions of this Informal Settlement, the Board may initiate appropriate action to revoke or suspend the Respondent's license or to impose other licensee discipline as authorized by Iowa Code section 272C.3(2)(a).

Barrion Staples
BARRION STAPLES
Respondent

Subscribed and sworn to before me on August 13, 1997.

Cynthia D. Gale
Notary Public, State of Iowa



This Informal Settlement is approved by the Board on August 22, 1997.

Bruce Buchanan
Bruce Buchanan
Iowa Board of Social Work Examiners
Board Chairperson

STATE OF IOWA
BEFORE THE BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF THE LICENSE

BARRION STAPLES

RESPONDENT

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CASE NO. 96-006

NOTICE OF HEARING

TO THE ABOVE NAMED RESPONDENT:

On the 11th day of June, 1997, the Iowa Board of Social Work Examiners concluded that probable cause exists to file a statement of charges and order a hearing in this matter.

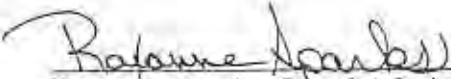
IT IS HEREBY ORDERED that a hearing be held upon the Statement of Charges. You are notified that a hearing will be held at 1:00 p.m. on the 22nd day of July, 1997, at the Lucas State Office Bldg., 4th Floor Conference Room 1, 321 E. 12th Street, Des Moines, Iowa..

You may appear personally and be represented by legal counsel at your expense, with the right to produce evidence in your behalf, to examine and cross-examine witnesses and to examine documentary evidence produced against you. If you fail to appear and defend, the hearing will proceed and a decision will be made.

You are also hereby notified that the office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all pleadings should be served on counsel at the following address:

Heather Adams
Assistant Attorney
Hoover State Office Building
Des Moines, Iowa 50319
515/281-3441

Dated this 11th day of June, 1997.


Roxanne Sparks, Board Administrator
Board of Social Work Examiners

BEFORE THE IOWA BOARD OF
SOCIAL WORK EXAMINERS

IN THE MATTER OF:	)	CASE NUMBER: 96-06
	)	
BARRION STAPLES	)	STATEMENT OF CHARGES
	)	
Respondent.	)	

TO THE ABOVE NAMED RESPONDENT:

The Iowa Board of Social Work Examiners has jurisdiction of this matter pursuant to Iowa Code chapters 17A, 154C, and 272C (1995).

Licenses issued by the Board are subject to the laws of the state of Iowa and to the administrative rules of the Board.

Respondent Barrion Staples was at all times during the following events a licensed social worker. Respondent was issued license number 00663 to practice as a social worker in the state of Iowa on July 17, 1990, as recorded in the permanent records in the office of the Board.

Respondent's license to practice social work in Iowa is current and will next expire on December 31, 1998.

Respondent's current address as reported to the Board is 1522 E. 9th Street, Des Moines, Iowa, 50316.

COUNT I

Respondent is charged with engaging in unethical conduct in the practice of social work in violation of Iowa Code section 272C.10(3) and 645 Iowa Administrative Code 280.212(3), when he made sexual advances towards and engaged in sexual contact with patient # 1.

COUNT II

Respondent is charged with engaging in prohibited acts in the practice of social work in violation of 645 Iowa Administrative Code 280.212(14)(e), when he engaged in sexual contact with patient # 1.

COUNT III

Respondent is charged with making sexual advances toward, or engaging in physical intimacies or sexual activities with a patient, in violation of 645 Iowa Administrative Code 280.212(9) and 280.213(3), when he engaged in sexual contact with patient # 1.

CIRCUMSTANCES

1. Respondent made sexual advances towards patient # 1 from September of 1995 to December of 1995.
2. Respondent engaged in sexual contact with patient # 1 in December of 1995.

COUNT IV

Respondent is charged with violating the terms of the Settlement Agreement entered into by Respondent and the Board on January 10, 1995, in violation of 645 Iowa Administrative Code 280.212(9) and the terms of the Settlement Agreement.

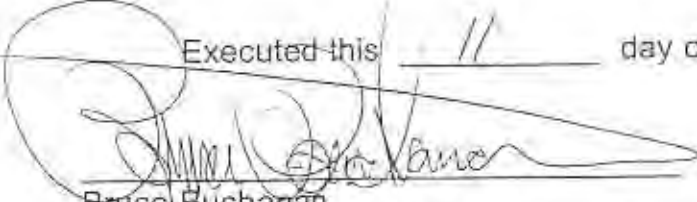
CIRCUMSTANCES

1. Respondent failed to comply with paragraphs three (3) through ten (10) of the Settlement Agreement entered into by Respondent and the Board on January 10, 1995, in his treatment of patient # 1.

FINDING OF PROBABLE CAUSE

On May 29, 1997, the Iowa Board of Social Work Examiners found probable cause to file this Statement of Charges and to order that a hearing be set in this case.

Executed this 11 day of June, 1997.



Bruce Buchanan
Iowa Board of Social Work Examiners
Board Chairperson

STATE OF IOWA
BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF LICENSE

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CASE NO: SW 96-006, 96-005, 96-001

*

BARRION STAPLES

*

NOTICE OF HEARING

*

*

RESPONDENT

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TO THE ABOVE NAMED RESPONDENT:

On the 13th day of January, 1998 the Iowa Board of Social Work Examiners concluded that probable cause exists to file a statement of charges and order a hearing in this matter.

IT IS HEREBY ORDERED that a hearing be held upon the Statement of Charges. You are notified that a hearing will be held at 9:00 a.m. on the 14th day of April 1998 at the Lucas State Office Building, 4th Floor Conference Room Side 1, 321 E. 12th Street, Des Moines, Iowa.

You may appear personally and be represented by legal counsel at your expense, with the right to produce evidence in your behalf, to examine and cross-examine witnesses and to examine documentary evidence produced against you. If you fail to appear and defend, the hearing will proceed and a decision will be made.

You are hereby notified that the office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all pleadings should be served on counsel at the following address:

Heather Adams
Assistant Attorney General
Hoover State Office Building
Des Moines, IA 50319

Dated this 14th day of January, 1998.



Roxanne Sparks, Board Administrator
Iowa Board of Social Work Examiners

BEFORE THE IOWA BOARD OF
SOCIAL WORK EXAMINERS

IN THE MATTER OF:

BARRION STAPLES

Respondent.

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)
)
)
)

CASE NUMBER: 96-06, 96-05, 96-01

STATEMENT OF CHARGES

TO THE ABOVE NAMED RESPONDENT:

The Iowa Board of Social Work Examiners has jurisdiction of this matter pursuant to Iowa Code chapters 17A, 154C, and 272C (1997).

Licenses issued by the Board are subject to the laws of the state of Iowa and to the administrative rules of the Board.

Respondent's current address as reported to the Board is 1522 E. 9th Street, Des Moines, Iowa, 50316.

COUNT I

Respondent is hereby charged pursuant to Iowa Code section 272C.3(2)"a" with failing to comply with a board decision imposing licensee discipline.

CIRCUMSTANCES

1. On August 22, 1997, the Board indefinitely suspended the Respondent's license to practice social work in Iowa pursuant to an Informal Settlement agreement. See Informal Settlement, attached and incorporated hereto as Exhibit A. The Informal Settlement expressly provides that "[d]uring the entire period of suspension, the Respondent shall not hold himself out to be a licensed social worker and shall not engage in any of the practices or aspects of the practice of social work in Iowa for which a license is required." See Informal Settlement, ¶¶ 4, 11.

2. Following the indefinite suspension of his license, the Respondent has engaged in the practice of social work in the state of Iowa as defined by Iowa Code chapter 154C on several occasions, including the following dates: September 8, 1997; October 7, 1997; October 13, 1997; October 20, 1997; October 27, 1997; November 3, 1997; November 10, 1997; November 17, 1997; and November 24, 1997.

FINDING OF PROBABLE CAUSE

On December 31, 1997, the Iowa Board of Social Work Examiners found probable cause to file this Statement of Charges and to order that a hearing be set in this case.

Executed this 13th day of January, 1998.

A handwritten signature in cursive script, appearing to read "Bruce Buchanan".

Bruce Buchanan
Iowa Board of Social Work Examiners
Board Chairperson

STATE OF IOWA
BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF LICENSE

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BARRION STAPLES

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CASE NO: SW 96-006, 96-005, 96-001

CORRECTED
NOTICE OF HEARING

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*

RESPONDENT

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TO THE ABOVE NAMED RESPONDENT:

On the 31st day of December, 1997 the Iowa Board of Social Work Examiners concluded that probable cause exists to file a statement of charges and order a hearing in this matter.

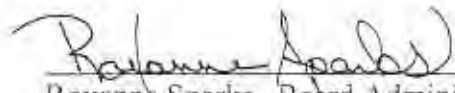
IT IS HEREBY ORDERED that a hearing be held upon the Statement of Charges. You are notified that a hearing will be held at 9:00 a.m. on the 14th day of April 1998 at the Lucas State Office Building, 4th Floor Conference Room Side 1, 321 E. 12th Street, Des Moines, Iowa.

You may appear personally and be represented by legal counsel at your expense, with the right to produce evidence in your behalf, to examine and cross-examine witnesses and to examine documentary evidence produced against you. If you fail to appear and defend, the hearing will proceed and a decision will be made.

You are hereby notified that the office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all pleadings should be served on counsel at the following address:

Heather Adams
Assistant Attorney General
Hoover State Office Building
Des Moines, IA 50319

Dated this 15th day of January, 1998.



Roxanne Sparks, Board Administrator
Iowa Board of Social Work Examiners

BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF:	)	
	)	DIA NO. 98DPHSW001
	)	
BARRION STAPLES	)	FINDINGS OF FACT,
	)	CONCLUSIONS OF LAW,
	)	DECISION AND ORDER

On January 13, 1998, the Iowa Board of Social Work Examiners (Board) filed a Statement of Charges against Barrion Staples (Respondent) alleging that he had violated Iowa Code section 272C.3(2)"a" by failing to comply with a board decision imposing licensee discipline. A Notice of Hearing was issued which set a hearing before the Board for April 14, 1998.

On March 19, 1998, the state of Iowa filed a Motion in Limine with exhibits attached. On March 30, 1998, the Respondent filed a Resistance to the Motion in Limine and attached exhibits. The Motion in Limine was granted on March 31, 1998. The hearing was continued at the Respondent's request. The state's request to reconsider the order for continuance was denied.

On April 8, 1998, the state of Iowa filed a Motion to Quash a Subpoena with attached exhibits. The Respondent filed a Motion to Reconsider the ruling on the Motion in Limine. On April 15, 1998, a ruling was issued which granted the Motion to Quash and denied the Motion to Reconsider.

The hearing was held on July 14, 1998 at 9:00 a.m. in the fourth floor conference room, Lucas State Office Building, Des Moines, Iowa. The following members of the Board were present for the hearing: Bruce Buchanan, L.I.S.W., Chairperson; William McCarty, L.I.S.W.; Janice McCoy, L.B.S.W.; Erlene Veverka and Linda L. Sickels, Public Members. Margaret LaMarche, Administrative Law Judge from the Iowa Department of Inspections and Appeals, served as the presiding officer for the Board. The Respondent appeared and was represented by his counsel, David D. Butler. The state was represented by Heather Adams, Assistant Attorney General. The hearing was tape recorded. The hearing was open to the public, pursuant to Iowa Code section 272C.6(1)(1997) and 645 IAC 280.206.

After hearing the testimony and examining the exhibits, the Board convened in closed executive session to deliberate their decision, pursuant to Iowa Code section 21.5(1)(f)(1997). The administrative law judge was instructed to prepare Findings of Fact, Conclusions of Law, Decision and Order, in accordance with the Board's deliberations.

THE RECORD

The record includes the Statement of Charges, Notice of Hearing, Corrected Notice of Hearing, the Motion in Limine and attached

exhibits, the Resistance to Motion in Limine and attached exhibits, the Ruling on Motion in Limine, the Order Continuing Hearing, Resistance to Motion to Continue, Request for Reconsideration of Continuance, Motion to Quash and attached exhibits, Request for Reconsideration of Motion in Limine, Ruling on Motion to Reconsider and Motion to Quash, Order Rescheduling the Hearing, Respondent's Brief, the testimony of the witnesses, and the following exhibits:

State Exhibit A:	Informal Settlement, 8/22/97
State Exhibit B:	Statement of Charges, 1/13/98
State Exhibit C:	Investigative Report, 12/9/97
State Exhibit D:	Crime Victim Compensation Program, Mental. Health Expense Verification, - Mental Health Treatment Plan
State Exhibit E:	Patient Records & Billing Documentation
State Exhibit F:	Admissions, 3/25/98
State Exhibit G:	Ruling on Motion in Limine, 3/31/98
Respondent Exhibit A:	None offered
Respondent Exhibit B:	Mental Health Treatment Verifica- tion, 9/24/97; Mental Health Treat- ment Plan
Respondent Exhibit C:	University of Iowa transcript; Iowa State transcript
Respondent Exhibit D:	Columbia Pacific University tran- script

FINDINGS OF FACT

1. On August 22, 1997, the Board indefinitely suspended the Respondent's license to practice social work in Iowa, with no possibility of reinstatement for a period of three (3) years, pursuant to an Informal Settlement agreement. The Informal Settlement Agreement expressly provides that "[d]uring the entire period of suspension, the Respondent shall not hold himself out to be a licensed social worker and shall not engage in any of the practices or aspects of the practice of social work for which a license is required. (State Exhibit A, paragraphs 4, 11)

2. Following the indefinite suspension of his license, the Respondent engaged in the practice of social work in the state of

Iowa, as defined by Iowa Code section 154C, on the following dates: September 8, 1997; October 7, 1997; October 13, 1997; October 20, 1997; October 27, 1997; November 3, 1997; November 10, 1997; and November 24, 1997. On these dates, the Respondent provided one or more of the following services to patient A: psychosocial assessment, diagnosis and/or treatment. Diagnosis and/or treatment include the performance of psychosocial history, problem identification and evaluation of symptoms and behavior, assessment of psychosocial strengths and weaknesses, assessment of the effects of the environment on patient's behavior, psychosocial therapy, establishment of treatment goals and/or monitoring of patient progress. (Testimony of Respondent; State Exhibits C-F)

3. The Respondent testified that he thought he was allowed to provide services to patient A under the Crime Victim Compensation Statute, Iowa Code chapter 912. The Respondent did not believe that he was required to have a social work license to provide these services. He believed that possession of his master's degree in social work authorized him to provide these services to the patient. The Respondent had known patient A since the early 1980's, and patient A was only willing to speak to the Respondent. (Testimony of Respondent; Respondent's Brief; Respondent Exhibits B-D)

4. The Respondent holds a master's degree in social work from the University of Iowa and a Ph.D. from Columbia Pacific University, School of Health and Human Services. (Respondent Exhibits C, D)

CONCLUSIONS OF LAW

1. Iowa Code section 272C.3(2)"a"(1997) provides, in relevant part:

272C.3 Authority of licensing boards.

...
2. Each licensing board may impose one or more of the following as licensing discipline:
a. Revoke a license, or suspend a license either until further order of the board or for a specified period...upon failure of the licensee to comply with a decision of the board imposing licensee discipline.

2. In his Informal Settlement with the Board, which constitutes a decision of the board imposing licensee discipline, the Respondent agreed to the indefinite suspension of his license for an indefinite period of not less than three (3) years. The Informal Settlement further ordered that the Respondent was not to hold himself out to be a licensed social worker and was not to engage in any of the practices or aspects of the practice of social work in the state of Iowa for which a license is required.

Iowa Code section 154C.2(1)(1997) provides that a person shall not engage in the practice of social work unless the person is licensed pursuant to chapter 154C. However, persons trained as bachelor social workers, or employed as bachelor social workers, are not required to be licensed. Iowa Code section 154C.2(2)(1997)

The practice of social work is defined at Iowa Code section 154C.1(3)(1997) Master social workers are qualified to perform the practice of bachelor social workers and provide psychosocial assessment, diagnosis, and treatment, including but not limited to performance of psychosocial histories, problem identification and evaluation of symptoms and behavior, assessment of psychosocial and behavioral strengths and weaknesses, effects of the environment on behavior, psychosocial therapy with individuals, couples, families, and groups, establishment of treatment goals and monitoring progress, differential treatment planning, and interdisciplinary consultation and collaboration. Iowa Code section 154C.1(3)(b)(1997).

The services provided by the Respondent to patient A match the statutory definition of master level social work and require licensure. By providing these services to patient A, the Respondent violated the terms of the Informal Settlement, in violation of Iowa Code section 272C.3(2)(a)(1997).

In his brief, the Respondent argues that he was authorized to provide services to patient A under the Crime Victim Compensation Statute.

Iowa Code section 912.6(1)(1997) provides that the department of justice shall award compensation, as appropriate, for any of the following economic losses incurred as a direct result of an injury to or death of the victim:

1. ...Reasonable charges incurred for mental health care not to exceed three thousand dollars which includes services provided by a psychologist licensed under chapter 154B, a person holding at least a master's degree in social work or counseling and guidance, or a victim counselor as defined in section 236A.1.

During the 1996 session of the legislature, Iowa Code section 154C was amended to require persons practicing social work at the master's level and above to be licensed. 1996 Acts, chapter 1035, section 6. Prior to this, Iowa Code section 154C had only been a title protection act.

Iowa Code section 912.6 was also amended during the 1996 legislative session. 1996 Acts, chapter 1216, section 36. However, the provision relating to compensation was not changed;

this provision had been in effect prior to the amendments to Iowa Code chapter 154C, when licensure was not required for master level social workers.

In construing these statutes, several rules of statutory construction appear applicable. Iowa Code section 4.7 provides that where a general provision conflicts with a special or local provision, they shall be construed, if possible, so that effect is given to both. If the conflict between the provisions is irreconcilable, the special or local provision prevails as an exception to the general provision. The Crime Victim Compensation Act is a general statute providing for various types of compensation to crime victims. Unlike Iowa Code chapter 154C, it does not purport to set licensing standards for social workers.

In this case, the Crime Victim Compensation Act provides that compensation shall be awarded, as appropriate. Iowa Code section 912.6. It clearly would not be appropriate for a state agency to award compensation to a person for providing services that they are unauthorized to perform without a license. In addition, the statutory requirement that the person to whom compensation is awarded must hold at least a master's degree in social work is only a minimum requirement. It is not inconsistent with also requiring the person to meet any applicable licensure requirements for the services provided. Iowa Code section 912.6(1).

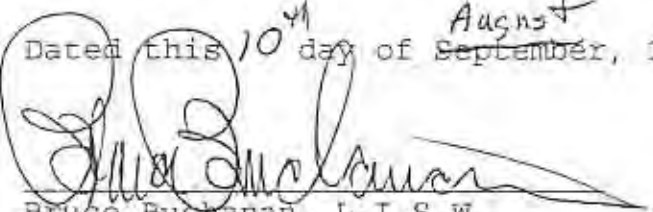
Iowa Code section 4.8 provides that where statutes are irreconcilable, the statute latest in enactment by the general assembly prevails. If these two statutes were deemed to be irreconcilable, the statute requiring licensure before practicing as a master's level social worker would prevail. It was enacted by the legislature after the Crime Victim Compensation provision. The Respondent's arguments regarding the Crime Victim Compensation Act are rejected.

ORDER

IT IS THEREFORE ORDERED, that for the violation of Iowa Code section 272C.3(2)(a), the minimum period of suspension of the Respondent's license to practice social work is extended an additional six (6) months.

However, in lieu of this additional six month suspension, the Respondent may choose to complete six (6) hours of continuing education in ethics, in addition to the three hours of continuing education which will be required for reinstatement of his license. These additional six hours of continuing education in ethics shall be pre-approved by the Board and must be reported to the Board in a personal appearance.

Dated this 10th day of ~~September~~ ^{August}, 1998.



Bruce Buchanan, L.I.S.W.
Chairperson
Iowa Board of Social Work Examiners

cc: Heather Adams
Assistant Attorney General
Department of Justice
Hoover State Office Building
Des Moines, Iowa 50319

David D. Butler
Des Moines Firehouse No. 11
1163 24th Street, Suite 235
Des Moines, Iowa 50311
(CERTIFIED)

Any appeal to the district court from disciplinary action of the board shall be taken within 30 days from the issuance of the decision by the board. It is not necessary to request a rehearing before the board to appeal to the district court. 645 IAC 280.208.

BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF:	}	DIA NO. 98DPHSW001
	}	
	}	BOARD DECISION
BARRION STAPLES	}	ON REHEARING
	}	

On August 10, 1998, following a hearing, the Iowa Board of Social Work Examiners (Board) issued a Findings of Fact, Conclusions of Law, Decision and Order in the above-captioned disciplinary action. On August 21, 1998, the state of Iowa, through the assistant attorney general, filed an Application for Rehearing, pursuant to Iowa Code section 17A.16(2), which was limited to a request that the Board reconsider the sanction imposed in this case. On September 9, 1998, the Board granted the Application for Rehearing and scheduled oral arguments on the rehearing for October 12, 1998, at 4:00 p.m.

The Respondent filed a Resistance to the Motion for Rehearing on September 9, 1998, after the Board had ruled on the motion. The Resistance was made a part of the record and considered by the Board in making its Decision on Rehearing. In addition, the Respondent filed a Brief in Support of the Board's Findings of Fact, Conclusions of Law, and Order.

The following Board members participated at the original hearing and were present for the oral arguments on rehearing: Bruce Buchanan, -L.I.S.W., Board Chairperson; Janice McCoy, L.B.S.W.; Erlene Veverka and Linda Sickels, Public Members. Heather Adams, Assistant Attorney General, appeared for the state. The Respondent appeared and was represented by his attorney, David D. Butler.

After hearing the oral arguments of the parties, the Board convened in closed executive session, pursuant to Iowa Code section 21.5(1)(f), to deliberate its decision.

DECISION AND ORDER

In its Findings of Fact, Conclusions of Law, Decision and Order issued on August 10, 1998, the Board found that the Respondent had violated Iowa Code section 272C.3(2)(a), when he failed to comply with a decision of the Board. The Respondent's license had previously been suspended by this Board for a minimum period of three (3) years. For this most recent violation, the Board ordered that the minimum period of suspension of the Respondent's license be extended an additional six months. However, in lieu of the additional suspension, the Board allowed the Respondent the option of completing six (6) hours of continuing education in ethics, in addition to those hours required for reinstatement, to be pre-approved by the Board.

The state of Iowa has asked the Board to reconsider the sanction imposed upon the Respondent. The state asserted that the sanction was inappropriate because it fails to adequately address the Respondent's history of disciplinary action with the Board, fails to adequately address the terms of the Informal Settlement, fails to adequately address the evidence introduced at the hearing, fails to adequately address the issue of public protection, and sends the message that there are no consequences for violating a board order.

The Respondent argues that the sanction should not be changed because it was within the Board's statutory authority, protects the public, and allows for the rehabilitation of the Respondent.

After careful consideration of the arguments presented by the parties, and further reflection concerning the nature of the violation presented and the Board's goals in determining sanctions, the Board has concluded that the sanction it initially selected was not proportionate to the Respondent's violation. In particular, the Board concludes that the Respondent's prior disciplinary history was not sufficiently factored into the sanction.

This was the third time that the Board had charged the Respondent with violating the Board's statutes or rules, and it was the second time that the Respondent had violated a Board order. (See State Exhibit 1). The previous Board Order had suspended the Respondent's license for a minimum period of three (3) years and had ordered him not to hold himself out as a licensed social worker or to engage in the practice of social work in the state of Iowa for which a license is required. The Respondent violated that Order. After considering the relevant factors, the Board has determined that the minimum period of suspension should be extended by fifty percent, or a total of eighteen (18) months. This sanction is necessary both for the protection of the public and to deter the Respondent from further violations of the Board Order.

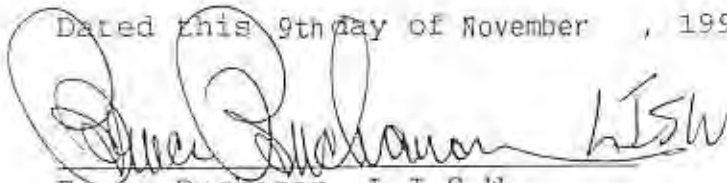
ORDER

IT IS THEREFORE ORDERED, that the Findings of Fact and Conclusions of Law contained in the Board's decision issued August 10, 1998, are hereby incorporated as though fully set forth.

IT IS FURTHER ORDERED, that the Order of the Board contained in the Board's decision issued August 10, 1998, is HEREBY STRICKEN, and the following order shall be substituted:

IT IS THEREFORE ORDERED, that for the violation of Iowa Code section 272C.3(2)(a), the minimum period of suspension of the Respondent's license to practice social work is extended an additional eighteen (18) months.

Dated this 9th day of November , 1998.



Bruce Buchanan, L.I.S.W.
Chairperson
Iowa Board of Social Work Examiners

cc: Heather Adams
Assistant Attorney General
Department of Justice
Hoover State Office Building
Des Moines, Iowa 50319

David D. Butler
Des Moines Firehouse No. 11
1163 24th Street, Suite 235
Des Moines, Iowa 50311
(CERTIFIED)

Any appeal to the district court from disciplinary action of the board shall be taken within 30 days from the issuance of the decision by the board. It is not necessary to request a rehearing before the board to appeal to the district court. 645 IAC 280.208.

BEFORE THE IOWA BOARD OF
SOCIAL WORK EXAMINERS

IN THE MATTER OF:

BARRION STAPLES

Respondent.

)
)
)
)
)

CASE NUMBER: 96-06, 96-05, 96-01

STATEMENT OF CHARGES

TO THE ABOVE NAMED RESPONDENT:

The Iowa Board of Social Work Examiners has jurisdiction of this matter pursuant to Iowa Code chapters 17A, 154C, and 272C (1997).

Licenses issued by the Board are subject to the laws of the state of Iowa and to the administrative rules of the Board.

Respondent's current address as reported to the Board is 1522 E. 9th Street, Des Moines, Iowa, 50316.

COUNT I

Respondent is hereby charged pursuant to Iowa Code section 272C.3(2)"a" with failing to comply with a board decision imposing licensee discipline.

CIRCUMSTANCES

1. On August 22, 1997, the Board indefinitely suspended the Respondent's license to practice social work in Iowa pursuant to an Informal Settlement agreement. See Informal Settlement, attached and incorporated hereto as Exhibit A. The Informal Settlement expressly provides that "[d]uring the entire period of suspension, the Respondent shall not hold himself out to be a licensed social worker and shall not engage in any of the practices or aspects of the practice of social work in Iowa for which a license is required." See Informal Settlement, ¶¶ 4, 11.

2. Following the indefinite suspension of his license, the Respondent has engaged in the practice of social work in the state of Iowa as defined by Iowa Code chapter 154C on several occasions, including the following dates: September 8, 1997; October 7, 1997; October 13, 1997; October 20, 1997; October 27, 1997; November 3, 1997; November 10, 1997; November 17, 1997; and November 24, 1997.

FINDING OF PROBABLE CAUSE

On December 31, 1997, the Iowa Board of Social Work Examiners found probable cause to file this Statement of Charges and to order that a hearing be set in this case.

Executed this 13th day of January, 1998.

A handwritten signature in dark ink, appearing to read "Bruce Buchanan", is written over a horizontal line. The signature is stylized with large, looping letters.

Bruce Buchanan
Iowa Board of Social Work Examiners
Board Chairperson

STATE OF IOWA
BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF:

*
* DIA NO. 98DPHSW001
*

BARRION STAPLES

*
* NOTICE OF REHEARING
*

RESPONDENT

TO THE ABOVE NAMED RESPONDENT:

On the 9th day of September 1998 the Iowa Board of Social Work Examiners approved the application for rehearing.

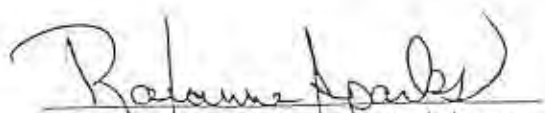
IT IS HEREBY ORDERED that a rehearing be held. You are notified that a rehearing will be held at 4:00 p.m. on the 12th day of October 1998 at the Lucas State Office Building, First Floor Hearing Room #2, 321 E. 12th Street, Des Moines, Iowa.

You may appear personally and be represented by legal counsel at your expense. The parties will be allowed an opportunity to present oral argument, limited to the sanction issue. No additional evidence will be taken, and the Board will not reconsider the Findings of Fact and Conclusions of Law. If you fail to appear and defend, the hearing will proceed and a decision will be made.

You are hereby notified that the office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all pleadings should be served on counsel at the following address:

Heather Adams
Assistant Attorney General
Hoover State Office Building
Des Moines, IA 50319

Dated this 10th day of September, 1998.


Roxanne Sparks, Board Administrator
Iowa Board of Social Work Examiners

cc: Barrion Staples
1522 E. 9th Street
Des Moines, IA 50316

David D. Butler
Attorney at Law
Des Moines Firchouse No #11
1163 24th Street, Suite #235
Des Moines, IA 50311

Heather Adams
Assistant Attorney General
Hoover State Office Building-2nd Floor
Des Moines, IA 50319

BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF:

BARRION STAPLES

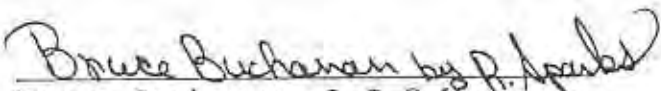
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) RULING GRANTING
) APPLICATION FOR
) REHEARING
)

On August 10, 1998, following a hearing, the Iowa Board of Social Work Examiners (Board) issued a Findings of Fact, Conclusions of Law, Decision and Order in the above-captioned disciplinary action. On August 21, 1998, the state of Iowa, through the assistant attorney general, filed an Application for Rehearing. Iowa Code section 17A.16(2). The Application for Rehearing was limited to a request that the Board reconsider the sanction imposed in this case. The Respondent, Barrion Staples, did not file a resistance to the Application for Reinstatement. The Board met by telephone conference call on September 9, 1998 at 7:30 a.m. to consider the application. A motion was approved granting the application.

IT IS THEREFORE ORDERED, that the Application for Rehearing on the issue of the disciplinary sanction imposed in the Board's final order is GRANTED. The parties will be allowed an opportunity to present oral argument, limited to the sanction issue, on Monday, October 12, 1998 at 4:00 p.m. in the first floor conference room, Lucas State Office Building, Des Moines, Iowa. No additional evidence will be taken, and the Board will not reconsider the Findings of Fact and Conclusions of Law.

Dated this 9th day of September, 1998.


Bruce Buchanan, L.I.S.W.
Chairperson
Iowa Board of Social Work Examiners

cc: Heather Adams
Assistant Attorney General
Department of Justice
Hoover State Office Building
Des Moines, Iowa 50319

David D. Butler
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